IN THE HIGH COURT OF SOUTH AFRICA

GAUTENG DIVISION, PRETORIA

CASE NO: **2025-137857**

In the matter between:

PETER ANDREW FAUCITT (Identity Number: 520430 5708 185)	**APPLICANT**
And	
JACQUELINE FAUCITT (Identity Number: 570607 0898 181)	**FISRT RESPONDENT**
DANIEL JAMES FAUCITT (Identity Number: 820715 5300 182)	**SECOND RESPONDENT**
REGIMA WORLDWIDE DISTRIBUTION (PTY) LTD (Registration Number: 2011/005722/07)	**THIRD RESPONDENT**
REGIMA SKIN TREATMENTS CC (Registration Number: 1992/005371/23)	**FOURTH RESPONDENT**
VILLA VIA ARCADIA NO 2 CC (Registration Number: 1996/00451/23)	**FIFTH RESPONDENT**
STRATEGIC LOGISTICS CC (Registration Number: 2008/136496/23)	**SIXTH RESPONDENT**
FIRSTRAND BANK LTD t/a FIRST NATIONAL BANK	**SEVENTH RESPONDENT**

ABSA BANK LIMITED	**EIGHTH RESPONDENT**
THE COMPANIES AND INTELLECTUAL PROPERTY COMMISSION	**NINTH RESPONDENT**

FILING NOTICE

DOCUMENT: **COURT ORDER DATED 12TH AUGUST 2026**

WITH ANNEXURES "PF15" AND "PF16"

FILED BY: **ELLIOTT ATTORNEYS INC**

DATED AND **SIGNED** AT **PRETORIA** ON THE 17 DAY OF **AUGUST 2026**.

ELLIOTT ATTORNEYS INC

ATTORNEYS FOR THE APPLICANT

OFFICE 12, GARSFONTEIN OFFICE PARK

645 JACQUELINE DRIVE

GARSFONTEIN, PRETORIA

TEL: 012 012 5067

EMAIL: keegan@elliottattorneys.co.za

REF: KRE/IB/KF0019

TO: **THE REGISTRAR OF THE ABOVE HONOURABLE COURT**

PRETORIA

AND TO: **LERENA ATTORNEYS**

ATTORNEYS FOR THE FIRST RESPONDENT

CELL: 082 047 9430

EMAIL: roslyn@lerenaattorneys.com

REF: R LERENA / F012

C/O CAWOOD ATTORNEYS INC

305 MELK STREET

CNR MELK STREET AND BRONKHORST STREETS

NIEUW MUCKLENUK, PRETORIA

EMAIL: alitia@cawoodlaw.co.za

REF: CAWOOD/

AND TO: **THE SECOND RESPONDENT**

dan@regima.com

(SERVICE VIA EMAIL)

059-1
12/8/2026

IN THE HIGH COURT OF SOUTH AFRICA
GAUTENG DIVISION, PRETORIA

BEFORE THE HONOURABLE JUSTICE MNGQIBISA-THUSI J
ON THIS 12th DAY OF AUGUST 2026
NO 16 ON THE ROLL

CASE NO: 2025 - 137857

In the matter between:

Private Bag X67, Pretoria 0001
2026 -08- 12
SID-PRET

PETER ANDREW FAUCITT (Identity Number: 520430 5708 18 5)	**APPLICANT**
And	
JACQUELINE FAUCITT (Identity Number: 570607 0898 18 1)	**FIRST RESPONDENT**
DANIEL JAMES FAUCITT (Identity Number: 820715 5300 18 2)	**SECOND RESPONDENT**
REGIMA WORLDWIDE DISTRIBUTION (PTY) LTD (Registration Number: 2011/005722/07)	**THIRD RESPONDENT**
REGIMA SKIN TREATMENTS CC (Registration Number: 1992/005371/23)	**FOURTH RESPONDENT**
VILLA VIA ARCADIA NO 2 CC (Registration Number: 1996/004451/23)	**FIFTH RESPONDENT**
STRATEGIC LOGISTICS CC (Registration Number: 2008/136496/23)	**SIXTH RESPONDENT**

RM

FIRSTRAND BANK LTD t/a FIRST NATIONAL BANK	**SEVENTH RESPONDENT**
ABSA BANK LIMITED	**EIGHTH RESPONDENT**
THE COMPANIES AND INTELLECTUAL PROPERTY COMMISSION	**NINTH RESPONDENT**

This Order is made an Order of Court by the Judge whose name is reflected hereon, duly stamped by the Registrar of the Court and is submitted electronically to the parties or their legal representatives by e-mail. This Order is further uploaded to the electronic file of this matter on CaseLines by the Judge or his/her Secretary/Registrar. The date of this Order is deemed to be ***12th of AUGUST 2026***

DRAFT ORDER

HAVING HEARD Counsel for the Applicant and having read the papers filed of record an order is granted in the following terms:

1. The ~~First and~~ Second Respondent ~~are~~ declared to be delinquent, regarding the Third ~~to~~ Sixth Respondents, as envisaged in section 162(5) of the Companies Act, No 71 of 2008, and section 69(8)(a) (of the Companies Act, No 71 of 2008), read together with section 47(1C) of the Close Corporations Act, No 69 of 2964;

2. The Ninth respondent (CIPC) is directed forthwith to remove the ~~First and~~ Second Respondents as Directors, and Members of the Third ~~to~~ Sixth Respondents;

3. The agreements entered into between the parties on 18 September 2025, attached to the founding affidavit, marked as "**PF15**" and "**PF16**" respectively, are made orders of court as regards the second respondent. 12/8/2026

4. No Order as to Costs.

BY ORDER:

2026 -08- 12

REGISTRAR

FOR THE APPLICANT:

Adv M Coetsee

mark.coetsee@gmail.com

082 447 4327

Elliott Attorneys Inc.

keegan@elliottattorneys.co.za

079 497 8214

RM

"PF15"

SETTLEMENT AGREEMENT

between

PETER ANDREW FAUCITT
(Identity Number: 5204305708185)

and

JACQUELINE FAUCITT
(Identity Number: 5706070898181)

and

DANIEL JAMES FAUCITT
(Identity Number: 8207155300182)

(Together "the Parties")

1 Introduction

1.1 Peter Faucitt obtained an *ex parte* order against Jacqueline Faucitt and Daniel Faucitt under case no: 2025-137857. A number of disputes arise in relation to the order and the relief sought in respect of part B of the proceedings under case no: 2025-137857.

1 2. The parties have agreed to settle in good faith the disputes which exist between them on the basis set out below, which, subject to further agreement, does not finalise the aforesaid proceedings.

2. Settlement

2.1. The parties agree to undergo the following medical assessments:

2.1.1 Jacqueline Faucitt shall undergo a psychiatric evaluation, which evaluation will commence by no later than 15 October 2025;

2 1.2. Daniel Faucitt shall undergo drug screening (specifically a hair follicle test) by no later than 5 October 2025 and a psychiatric evaluation, which evaluation will commence by no later than 15 October 2025; and

2 1 3 Peter Faucitt shall undergo drug screening (specifically a hair follicle test) by no later than 5 October 2025 and a psychiatric evaluation, which evaluation will commence by no later than 15 October 2025.

2.2. The parties agree to undergo any further tests/assessments and/or treatments that may be directed by the psychiatric professional.

2.3. The service providers and/or medical professionals to conduct the tests set out in clause 2.1 above will be jointly agreed to by the parties' attorneys.

2.4. By failure of such agreement, the attorneys' for the parties shall request the appointment of such expert by the Gauteng Family Law Forum, and shall be bound to the appointment made in terms thereof.

2.5. The reports prepared by the medical professionals will be provided to the parties' attorneys.

2.6. The costs of these medical assessments shall be borne by each party individually.

3. Costs

3.1. Save for the costs referred to in paragraph 2.6 above, each party will bear their own costs.

4. Confidentiality

The parties agree:

4.1. To keep the contents of this settlement agreement and the reports produced pursuant to the medical testing set out in clause 2 above confidential; and

4.2. Not to disclose, communicate or otherwise make public the details of the settlement to any third party, without the parties' written consent, which consent will not be unreasonably withheld, *alternately* as may be required for any party to uphold their rights.

5. General

5.1. This settlement agreement constitutes the sole agreement regarding the subject matter hereof (as pertains to the testing required of the parties) and no amendment or variation shall be of any force or effect unless reduced to writing and signed by all the parties.

5.2. No party will be bound by any express, implied or tacit term, representation, warranty or promise or the like not recorded in writing in this settlement agreement.

5.3. The parties are not entitled to cede any of their rights or delegate any of their obligations under this settlement agreement.

5.4. The rule of interpretation that, in the event of ambiguity, this settlement agreement must be interpreted against the party responsible for drafting the settlement agreement does not apply.

5.5. This settlement agreement may be executed in counterparts, each of which will be an original and which together constitute the same agreement.

Signed at SANDOWN on this 18th day of **September 2025**.

Peter Andrew Faucitt

Signed at SANDTON on this 18th day of **September 2025**.

Jacqueline Faucitt

Signed at SANDTON on this 18th day of September 2025.

Daniel James Faucitt

"PF16"

SETTLEMENT AGREEMENT

between

PETER ANDREW FAUCITT
(Identity Number: 5204305708185)

and

JACQUELINE FAUCITT
(Identity Number: 5706070898181)

and

DANIEL JAMES FAUCITT
(Identity Number: 8207155300182)

(Together "the Parties")

1. Introduction

1.1. Peter Faucitt obtained an *ex parte* order against Jacqueline Faucitt and Daniel Faucitt under case no: 2025-137857. A number of disputes arise in relation to the order and the relief sought in respect of part B of the proceedings under case no: 2025-137857.

1.2. The parties have agreed to settle in good faith the disputes which exist between them on the basis set out below.

1.3. The parties agree to remain bound by the terms of the aforesaid order of Court until such a time as same is set aside or agreement is reached with regards to the finalisation of the aforesaid matter.

2. Settlement

2.1. Forensic investigation

2.1.1. The parties jointly agree that Forvis Mazars will be appointed to conduct a forensic investigation into the financial affairs of the third to sixth respondents in case number 2025-137857.

2.1.2. The parties' attorneys of record will jointly finalise the terms of reference, which will include but are not limited to:

2.1.2.1. Interviews being held with Peter Faucitt, Daniel Faucitt, Jacqui Faucitt, Rynette Farrar and any other role players identified by the investigators;

2.1.2.2. The investigation will address aspects relating to the IT payments processed from the accounts of the third to sixth respondents, misappropriation of funds and procurement concerns; and

2.1.2.3. The investigation being concluded without any delay.

2.1.3. The costs of the forensic investigation are to be borne by the third to sixth respondents.

2.2. Transaction process

2.2.1. Pending the conclusion of the forensic investigation, the process for transfer of any funds or transactions in respect of the accounts of the third to sixth respondents shall take place as follows:

2.2.1 1. Peter Faucitt will, prior to giving effect to any transfer of funds or transactions on the accounts of the third to sixth respondents, Peter Faucitt will send an email to Jacqueline and Daniel Faucitt specifying the nature of the transaction, value of and brief description for the transaction; and

2.2.1.2. Jacqueline and Daniel Faucitt reserve their rights in relation to any such transactions effected during this period.

2.3. Reimbursement of payments

2.3.1. Peter Faucitt, through the third to sixth respondents, as the case may be, undertakes to reimburse Daniel Faucitt for all *bona fide* business-related transactions which he has incurred in his personal capacity from 7 June 2025 to date.

2.3.2. Daniel Faucitt will prepare a schedule setting out the date, value and brief description of the transaction, along with supporting documents and/or invoices

2.3.3. The reimbursement will take place within seven (7) business days of receipt of the schedule and documentation referred to in paragraph 2.3.3 above.

2.4. Processing of business-related payments

2.4.1. Peter Faucitt (through the third to sixth respondents) agrees to effect payment of the SAGE account of the third respondent.

2.4.2. The parties hereby acknowledge that the reference to "registered owner" does not indicate any proprietary interest in the third respondent and is merely a term used by the service provider.

2.4.3. All other business expenses which have not been paid will be identified by Daniel and/or Jacqui Faucitt and provided to Peter Faucitt who will then arrange payment of such expenses, from and on behalf of the relevant entity, and subject to the provision of supporting documentation and/or invoices therefore

2.5. Upon receipt of the forensic investigator's written report, these mediation proceedings shall reconvene for the purposes of discussing and effecting the forensic investigator's findings and written recommendations, together with any other issues that flow from the forensic investigation report.

2.6. Pending the mediation referred to in paragraph 2.5 above, the time periods for the filing of further papers in respect of the proceedings under case number 2025-137857 remain suspended, as the proceedings remain pending.

2.7. Insofar as the court order dated 19 August 2025 under case number 2025-137857 is concerned, the parties agree that paragraph 2.8.3 will be read as follows:

> *"are interdicted and directed to answer all questions put to them in regard to the forensic investigation and the experts appointed by the forensic investigators, honestly and forthrightly"*

2.8. This shall not preclude any party from approaching a Court for any appropriate or necessary relief.

3. Costs

3.1. Save for the costs referred to in paragraph 2.1.3 above, each party will bear their own costs.

4. General

4.1. This settlement agreement constitutes the sole agreement regarding the subject (subject to any further agreement entered into between the parties) matter hereof and no amendment or variation shall be of any force or effect unless reduced to writing and signed by all the parties.

4.2. No party will be bound by any express, implied or tacit term, representation, warranty or promise or the like not recorded in writing in this settlement agreement.

4.3. The parties are not entitled to cede any of their rights or delegate any of their obligations under this settlement agreement.

4.4. The rule of interpretation that, in the event of ambiguity, this settlement agreement must be interpreted against the party responsible for drafting the settlement agreement does not apply.

4.5. This settlement agreement may be executed in counterparts, each of which will be an original and which together constitute the same agreement.

Signed at SANDOWN on this 18th day of **September 2025**.

Peter Andrew Faucitt

Signed at SANDTON on this 18th day of **September 2025**.

Jacqueline Faucitt

Signed at SANDTON on this 18th day of **September 2025**.

Daniel James Faucitt